



CHAPTER cxx.

An Act to confirm a Scheme of the Charity Commissioners for the management of the Charity consisting of the Particular or Calvinistic Baptist Chapel in South Parade in the City of Leeds. [9th August 1907.] A.D. 1907.

WHEREAS the Charity Commissioners for England and Wales in their report to His Majesty of their proceedings during the year one thousand nine hundred and six have reported that they have approved and certified a scheme for the management of the charity consisting of the Particular or Calvinistic Baptist Chapel in South Parade in the city of Leeds comprised in indentures of lease and release dated respectively the twenty-fifth and twenty-sixth days of May one thousand eight hundred and twenty-five:

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners. Confirmation of scheme.

2. This Act may be cited as the Leeds Particular or Calvinistic Baptist Chapel in South Parade Scheme Confirmation Act 1907. Short title.

[Ch. cxx.] *Leeds Particular or Calvinistic Baptist* [7 EDW. 7.]
Chapel in South Parade Scheme Confirmation Act, 1907.

A.D. 1907.

SCHEDULE.

*Scheme for the Application or Management of the
Charity consisting of the Particular or Calvinistic Baptist Chapel
in South Parade in the City of Leeds in the
West Riding of the County of York.*

Sale of chapel.

1. The Trustees of the charity may sell either by public auction or private treaty the above-mentioned chapel with its site and appurtenances at the best price that can reasonably be obtained and may do and execute all such acts and assurances as may be requisite or proper for carrying the same into complete effect.

New chapels
and schools.

2. The net proceeds of such sale shall be divided by the Trustees into three equal parts which respectively shall be applied by the Trustees subject in each case to the approval of the committee for the time being of the Yorkshire Association of Baptist Churches as follows:—

(A) As to one of such parts in or towards the purchase of a suitable site at Headingley in the city of Leeds and the erection thereon of new chapel and school buildings;

(B) As to one other of such parts in or towards the purchase of a suitable site at Harehills in the city of Leeds and the erection thereon of similar buildings;

(C) As to the remaining part in or towards the purchase of a suitable site or suitable sites at such place or places in the city of Leeds as a majority of the Trustees may determine and the erection thereon of similar buildings.

Trusts of new
chapels and
schools.

3. The sites to be purchased as aforesaid with the buildings to be erected thereon respectively shall be settled respectively upon trust to permit and suffer the said buildings to be used occupied and enjoyed as and for places of public religious worship and teaching by the Church or society now worshipping in the above-mentioned chapel in South Parade or by such other Baptist Church or society as shall for the time being be authorised to use and occupy the same by the said committee and in all other respects upon such and the same trusts and to and for such and the same ends and purposes and with under and subject to such and the same powers provisoes declarations and agreements (so far as the same may be applicable and capable of taking effect) as are expressed declared and contained in and by a certain indenture bearing date the nineteenth day of July one thousand eight hundred and eighty-eight and made between Lawrence Watson of the first part and Alfred Barran and seventeen others of the second part being the trust deed for the settlement of the Baptist chapel and school at Middlesbrough in the county of York and usually known or distinguished as "The Model Trust Deed of the Yorkshire Association of Baptist Churches" but so nevertheless that the

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said premises shall (save as herein-after provided) be held subject to the restriction following viz. That it shall not be lawful for the Trustees (notwithstanding anything in the said model deed contained) to make or grant otherwise than with the express authority of Parliament or with the previous sanction of the Charity Commissioners or of a court of competent jurisdiction any sale exchange mortgage or charge thereof or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding twenty-one years:

Provided that so long as any chapel to be erected on any of the said sites is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship the aforesaid restriction shall not apply so far as regards such chapel and its appurtenances or as regards such other property (if any) held in connexion therewith as by virtue of any provision of the Charitable Trusts Acts 1853 to 1894 may for the time being be exempted from the jurisdiction conferred by those Acts.

4. Pending such application as aforesaid of the said three equal parts the income arising therefrom respectively shall be accumulated in augmentation of the part from which the same has arisen or shall be applied for the benefit of the said church or society now worshipping as aforesaid in such way or ways as a majority of the Trustees may with the approval of the said committee from time to time determine. Interim provision.

5. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder. Alteration of scheme.

6. Any question as to the construction of this scheme or as to the regularity or the validity of any acts done or about to be done under this scheme shall be determined conclusively by the Charity Commissioners upon such application made to them for the purpose as they think sufficient. Questions under scheme.

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